

SCHEDULE.

Section 1.

RATES OF PAY.

	Weekly Pay	
	s.	d.
Head constable :	-	-
Five years' service in that rank and over	10	0
Under five years' service	37	6
Sergeant :—		
Four years' service in that rank and over	32	0
Under four years' service	30	0
Acting sergeant	29	0
Constable :		
Twenty-five years' service and over	28	0
Fifteen to twenty-five years' service	27	0
Thirteen to fifteen years' service	26	0
Eleven to thirteen years' service	25	0
Seven to eleven years' service	24	0
Four to seven years' service	22	0
Six months' to four years' service	21	0
Under six months' service	15	0

CHAPTER 61.

An Act to provide further facilities for the erection of Houses for the Working Classes in Cities and Towns in Ireland. [21st December 1908.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) The maximum period which may be sanctioned as the period for which money may be borrowed by a local authority for the purposes of the Housing of the Working Classes Acts shall be eighty years, and as regards money so borrowed eighty years shall be substituted for sixty years in section two hundred and thirty-eight of the Public Health (Ireland) Act, 1878, and the Commissioners of Public Works in Ireland may make advances by way of loan to any local authority for the said purposes for such period (not exceeding eighty years) as may be sanctioned by the Local Government Board.

Extension of period of re-payment of loans.

11 & 12 Vict. c. 52.

(2) The local authority shall not be required, during the two years immediately following the exercise of any borrowing powers for the purposes of the said Acts, to pay off any portion of the principal moneys so borrowed by them, or to pay any money into a sinking fund for the redemption thereof.

(3) Borrowing powers shall, for the purposes of this section, be deemed to be exercised upon the date of the execution of the mortgage or other instrument securing the loan.

move of
limitation on
borrowing
powers.

2. Money borrowed for the purposes of the Housing of the Working Classes Acts, whether borrowed before or after the passing of this Act, shall not be reckoned as part of the debt of the local authority for the purpose of the limitation on borrowing contained in section two hundred and thirty-eight of the Public Health (Ireland) Act, 1878.

borrowing
pay off
loan.

3.—(1) In addition to any existing powers of borrowing for the purposes of the Housing of the Working Classes Acts, a local authority may, from time to time, with the consent of the Local Government Board, during the period which was fixed for the discharge of any loan raised by them under the said Acts, borrow on the like security such amount as may be required for the purpose of paying off the whole or any part of such loan, or, if any such loan has been repaid otherwise than by capital money, for re-borrowing the amount so repaid, and for the purpose of this section the expression "capital money" shall be deemed to include any instalments, annual appropriations, and sinking fund, and proceeds of the sale of land or other property, but does not include money previously borrowed for the purpose of repaying a loan :

Provided that it shall not be obligatory upon the Commissioners of Public Works in Ireland to lend money to any local authority for any of the purposes authorised by this section.

(2) All money re-borrowed under this section shall be repaid within the period fixed for the discharge of the original loan; and every loan for re-borrowing shall, for the purpose of the ultimate discharge, be deemed to form part of the same loan as the original loan, and the obligations of the local authority with respect to the discharge of the original loan shall not be in any way affected by means of the re-borrowing.

application of
dormant por-
tion of Irish
Judges' Fund
for purposes of
Housing Acts.

4.—(1) The Bank of Ireland shall, out of the fund of suitors in the Supreme Court, upon the order of the Lord Chancellor, pay to the Local Government Board, for the purposes of the Housing of the Working Classes Acts, the sum of eighty thousand pounds.

(2) The Accountant General of the Supreme Court of Judicature in Ireland shall, on the order of the Lord Chancellor, out of the new Two and a half Per Centum Consolidated Stock forming portion of the fund of suitors in the Supreme Court and standing to the credit of the general ledger account kept by him for dormant balances, and the unclaimed order and residue account, Land Judge's Court, transfer to the Local Government Board, for the purposes of the Housing of the Working Classes Acts, stock to the nominal value of one hundred thousand pounds.

(3) The Local Government Board shall, on such transfer as aforesaid being made, forthwith sell such stock so transferred and invest the proceeds thereof, together with the said sum of eighty thousand pounds, in any securities in which trustees are authorised by the Irish Land Act, 1903, to invest trust moneys, and the annual income of such investment shall be applied in the manner directed by this Act. 3 Edw. 7. c. 3

(4) If it happens that the moneys or securities standing to the credit of the account of the suitors in the Supreme Court are at any time reduced to a sum not sufficient to meet the demands upon them or either of them, then the Treasury, so as to afford a complete indemnity to the suitors for any loss which they might sustain by reason of the passing of this Act, shall advance out of the Consolidated Fund or the growing produce thereof such sum as they may think necessary, not exceeding in the whole the sum of eighty thousand pounds and the amount which would be realised at the date of such demands as aforesaid by the sale of the securities transferred in pursuance of this section, together with the dividends that would have accrued thereon if such securities had not been so transferred.

5.—(1) The investments directed by section four of this Act shall form and in this Act are referred to as "the Irish Housing Fund." Creation and application of Irish Housing Fund.

(2) For the purpose of allocating and paying the annual income of the Irish Housing Fund the Local Government Board shall, in every local financial year, ascertain and certify the amount which, as at the beginning of that year, each local authority is, in accordance with the provisions of subsection (4) of section two hundred and thirty-eight of the Public Health (Ireland) Act, 1878, as amended by this Act, liable to pay or to set apart in the course of that year in respect of moneys borrowed by the authority after the passing of this Act for the purposes of the Housing of the Working Classes Acts (in this section referred to as "the annual housing charge"), and shall allocate and pay the said income received during that year to and amongst the local authorities in manner following, that is to say, to each local authority liable in respect of an annual housing charge as aforesaid a sum that will bear the same proportion to the annual housing charge of that authority as the total amount of the said income so received as aforesaid will bear to the total amount of the annual housing charges of all local authorities in Ireland, provided that the sum so payable to any local authority shall not exceed the amount of the annual housing charge of the authority.

(3) In ascertaining the amount of the annual housing charge of any local authority, no account shall be taken of any sums payable or liable to be set apart by the authority in respect of moneys re-borrowed for the discharge of loans raised before the passing of this Act.

(4) Any income of the Irish Housing Fund received prior to the first day of April one thousand nine hundred and nine shall for the purposes of this section, be treated as income received during the local financial year which begins on that day.

(5) Any sum payable to a local authority under this section shall be applied in or towards payment of the annual housing charge of the local authority.

(6) So much of the annual income of the Irish Housing Fund as is not distributed under the foregoing provisions of this section shall be added to the principal of the said fund and invested accordingly.

Extension of
Edw. 7. c. 37.
to provide
for the
Housing of the
Working Classes Act
1890.

6.—(1) Where a petition is presented by a local authority to the Local Government Board for an Order—

- (a) confirming an improvement scheme under Part I. of the Act of 1890; or
- (b) sanctioning a reconstruction scheme under Part II. of that Act; or
- (c) authorising the acquisition of land for the purposes of Part III. of that Act;

the provisions of section six of the Labourers (Ireland) Act, 1906, shall, with the necessary modifications, apply in the case of the petition and the subsequent proceedings and orders thereon in like manner as they apply in the case of an improvement scheme under the Labourers (Ireland) Acts, 1883 to 1906, and the Local Lieutenant in Council may make such adaptations of those provisions as appear to him to be necessary or expedient for carrying this section into effect.

(2) For the purposes of this section, section two hundred and three of the Public Health (Ireland) Act, 1878, and section seven of the Act of 1890 shall have effect with the following modifications, that is to say, the advertisements mentioned in those sections respectively may be published in any month, and the notices mentioned in those sections respectively shall be served in the month next following the month in which the advertisements are published.

(3) The provisions of this section shall extend to all petitions which are pending at the passing of this Act.

Exercise of
housing powers
outside dis-

7. Where a local authority have adopted Part Three of the Act of 1890 they may, for supplying the needs of their district, establish or acquire lodging-houses for the working classes outside their district, and they shall have the same powers of borrowing, in respect of anything done under this section, as such authority have in respect of anything done for the purposes of the Housing of the Working Classes Acts within their district:

Provided always that no lodging-houses shall be established or acquired by any local authority under the provisions of this section save with the consent of the Local Government Board and of any urban or rural district council within whose district it is proposed to establish or acquire such lodging-houses.

(Ireland) Act, 1908.

8.—(1) The local authority, with the consent of the Local Government Board, may let on lease, for any period they may think fit, any land acquired by them under and for the purposes of Part Three of the Act of 1890 to any company, society, or association for the purpose of constructing or improving, or of facilitating or encouraging the construction or improvement of, dwellings for the working classes, for the purpose and under the condition that the lessees shall carry the said Act into execution by building and maintaining on the land lodging-houses within the meaning of the Act.

Leases by local authority for building working-class houses.

(2) Any lease executed under the powers of this section shall contain all necessary provisions for ensuring the user of the land and buildings for lodging-houses within the meaning of the said Act, and in particular there shall be inserted provisions binding the lessees to build on the land as in the lease prescribed, and repair and maintain the buildings, and securing the user of the buildings exclusively as lodging-houses within the meaning of the Act, and prohibiting any addition to or alteration of the character of the buildings without the consent of the local authority, and also a provision for the re-entry of the local authority on the land on the breach of any of the terms of the lease; and every deed or instrument of demise shall be endorsed with notice of this subsection.

(3) Any such lease as aforesaid shall reserve such rent as the local authority may, with the consent of the Local Government Board, determine: Provided that the local authority may, with the like consent, accept, during such period (not exceeding five years) as they may determine, such abated rent in lieu of the rent so reserved as they may think fit.

9.—(1) Where proceedings are taken by the local authority under section thirty-two of the Act of 1890 for the purpose of causing a dwelling-house to be closed, the court, in addition to or instead of making an order under that section, may order such dwelling-house to be demolished, unless, within such period as may be prescribed in the order, such dwelling-house be rendered fit, to the satisfaction of the local authority, for human habitation; and where such demolition order has been made and the dwelling-house is not within the time prescribed by the order rendered fit to the satisfaction of the local authority for human habitation, the order shall be carried into effect in manner provided by section thirty-four of the said Act: Provided that, where proceedings are taken against the occupier, notice of such proceedings shall be served on the owner.

Amendment of law as to closing and demolition orders.

(2) Section thirty-three of the said Act shall be repealed so far as it is inconsistent with this section.

10. Section nine of the Act of 1903 shall extend to Ireland.

Power to recover cost of demolition.

11. For the purposes of the Housing of the Working Classes Acts, sections seventy-one and seventy-two of the Lands Clauses Consolidation Act, 1845, as amended by the Second Schedule to

Amendment of 8 & 9 Vict. c. 18.

the Act of 1890, shall have effect as if "sixty pounds" were substituted therein for "twenty pounds." Provided that the sums paid under the provisions of section seventy-two of the first-mentioned statute by any particular local authority, in respect of any interest in land taken under any scheme or schemes, to a person or persons not absolutely entitled to the interest purchased shall not exceed in the aggregate three hundred pounds.

Donations for
housing pur-
poses.

12. A local authority may accept a donation of land or money or other property for any of the purposes of the Housing Acts.

Extension to
certain towns
of Part II. of
Act of 1890.

13. Any town commissioners, within the meaning of section ninety-nine of the Act of 1890, may, if they think fit, with the sanction of the Local Government Board, adopt Part II. of the Act of 1890 in like manner as they may adopt Part III. of that Act, and the Housing of the Working Classes Act, 1893, and the provisions of section ninety-nine and of section one hundred of the Act of 1890 shall apply accordingly with this modification that any references therein to Part III. of the Act of 1890 shall be construed as references to Part II. of that Act.

Rates of in-
terest on loans.

14. Where a loan is made by the Commissioners of Public Works in Ireland to a local authority for any purposes of the Housing of the Working Classes Acts—

- (a) the loan shall be made at the minimum rate of interest for the time being allowed for loans out of the Local Loans Fund; and
- (b) as between loans for different periods the longer duration of the loan shall not be taken as a reason for fixing a higher rate of interest.

Short title.
53 & 54 Vict.
c. 70.
56 & 57 Vict.
c. 33.
57 & 58 Vict.
c. 65.
59 & 60 Vict.
c. 11.

15. This Act may be cited as the Housing of the Working Classes (Ireland) Act, 1908, and shall be read as one with the Housing of the Working Classes Act, 1890; the Housing of the Working Classes Act, 1893; the Housing of the Working Classes Act, 1894; and the Housing of the Working Classes (Ireland) Act, 1896; and those Acts and this Act may be cited collectively as the Housing of the Working Classes (Ireland) Acts, 1890 to 1908.

Interpretation
of terms.

16. In this Act, unless the context otherwise requires,—

The expression "Local Government Board" means the Local Government Board for Ireland;

The expression "local financial year" means the twelve months ending the thirty-first day of March;

The expression "purposes of the Housing of the Working Classes Acts" means any purposes authorised by the Housing of the Working Classes (Ireland) Acts, 1896 to 1896, or by any of those Acts, or by this Act;

"The Act of 1890." means the Housing of the Working Classes Act, 1890.

(Ireland) Act, 1908.

"The Act of 1900" means the Housing of the Working Classes Act, 1900; 63 & 64 Vict. c. 32.

"The Act of 1903" means the Housing of the Working Classes Act, 1903; 3 Edw. 7, c. 35.

The expression "owner" has the same meaning as in the Public Health (Ireland) Act, 1878;

The expression "working classes" shall include mechanics, artisans, labourers, and others working for wages, hawkers, costermongers, persons not working for wages but working at some trade or handicraft without employing others except members of their own family, and persons, other than domestic servants, whose income in any case does not exceed an average of thirty shillings a week, and the families of any of such persons who may be residing with them.

The expression "the fund of suitors in the Supreme Court" and "the Lord Chancellor" shall have the same meanings respectively as they have in the Four Courts Library Act, 1894. 57 & 58 Vict. c. 4.

17. This Act shall come into operation on the passing hereof. Commencement of Act.

18. This Act shall extend to Ireland only. Extent of Act.

CHAPTER 62.

An Act to amend the Law relating to County Government, and to Roads and Bridges and the use of Locomotives thereon, in Scotland. [21st December 1908.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1. This Act may be cited as the Local Government (Scotland) Act, 1908, and this Act and the Local Government (Scotland) Act, 1889 (herein-after called the principal Act), the Local Government (Scotland) Act, 1894, and the Local Government (Scotland) Act, 1894, Amendment Act, 1895, may be cited together as the Local Government (Scotland) Acts, 1889 to 1908. Short title
52 & 53 Vict.
c. 50.
57 & 58 Vict.
c. 58.
58 Vict. c. 1.

2. This Act shall extend to Scotland only. Extent of Act.

3.—(1) A county council may, with the consent of the Secretary for Scotland, and subject to the provisions of the principal Act and this Act or any local Act with regard to capital expenditure,— Power to provide county buildings and dwellings.

(a) Construct, reconstruct, or extend county buildings, and provide, erect, alter, enlarge, and maintain such additional county buildings as may from time to time